

Senate File 446

S-3039

1 Amend Senate File 446 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. NEW SECTION. 280.13D Realignment of high
5 school athletics conferences — committee approval.

6 1. For purposes of this section:

7 a. "*Extracurricular interscholastic athletics*" means a
8 contest or competition for sports between different school
9 districts or accredited nonpublic schools and outside the
10 regular scope of a school district's or accredited nonpublic
11 school's curriculum.

12 b. "*Organization*" means the Iowa high school athletic
13 association or its successor organization, and the Iowa girls
14 high school athletic union or its successor organization.

15 2. On or after July 1, 2025, a school district shall not
16 expend any moneys, and an accredited nonpublic school shall not
17 expend any moneys originating from the state, to pay dues or
18 membership fees to an organization, and the school district
19 or accredited nonpublic school shall not be a member of,
20 participate in activities associated with, or receive services
21 from an organization unless the organization develops and
22 implements a policy that does all of the following:

23 a. (1) Establishes, in combination with the other
24 organization, a committee known as the conference realignment
25 committee. The conference realignment committee shall do all
26 of the following:

27 (a) Take action to bring about a reasonable conference
28 affiliation and relationship for high schools that are
29 members of organizations. Reasonable conference affiliation
30 and relationship with member high schools may include
31 total movement of member schools, sport-specific relief, or
32 scheduling assistance. When taking action to bring about
33 a reasonable conference affiliation and relationship for
34 member high schools, the committee shall consider all of the
35 following:

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(amending this SF 446 to CONFORM to HF 783)

1 (i) The current total enrollment of the member high schools
2 and the projected total enrollment of the member high schools
3 in the future.

4 (ii) Travel distances between member high schools.

5 (iii) The comparability of instructional programs provided
6 by member high schools.

7 (iv) Traditional rivalries.

8 (v) The number of member high schools currently in the
9 conference and the number of high schools that may be added to
10 the conference.

11 (vi) The comparability of athletic programs and other
12 school-sponsored programs provided by the member high schools.

13 (b) Review all requests that are submitted to the
14 committee by school districts and accredited nonpublic schools
15 that are members of an organization related to changing
16 the extracurricular interscholastic athletics conferences
17 the school belongs to, including moving a member school
18 to a different conference. A request submitted under this
19 subparagraph division must contain an analysis of how the
20 change will affect the school district or accredited nonpublic
21 school submitting the request along with how the change may
22 affect other school districts and accredited nonpublic schools
23 that are members of the organization.

24 (c) When determining whether to approve or reject the
25 request, the committee shall consider the factors described
26 in subparagraph division (a) and how to best bring about
27 reasonable interscholastic athletics conferences that
28 are beneficial to students enrolled in school districts
29 and accredited nonpublic schools that are members of the
30 organization. After making a decision, the committee shall
31 provide a copy of the request and the committee's decision to
32 the applicable organization and order the organization to take
33 all actions necessary to effectuate the committee's decision.
34 If the committee's decision rejects the school district's or
35 accredited nonpublic school's request, the committee shall

1 recommend an alternative conference alignment or allow the
2 school district or accredited nonpublic school to opt for
3 independent status.

4 (d) Develop an expedited review process for requests to
5 change an extracurricular interscholastic athletics conference
6 membership that are submitted to the committee by all school
7 districts and accredited nonpublic schools that may be affected
8 by the change. The expedited review process must require the
9 committee to provide a copy of the requests received under
10 this subparagraph division to the applicable organization and
11 to direct the applicable organization to take all actions
12 necessary to effectuate the committee's decision.

13 (e) Review extracurricular interscholastic athletics
14 conference changes at least once every two years.

15 (f) Allow a school district or an accredited nonpublic
16 school to appeal orders issued by the committee to the director
17 of the department of education.

18 (2) (a) The conference realignment committee shall consist
19 of eighteen members, subject to the following requirements:

20 (i) Nine members shall be superintendents employed by
21 school districts or accredited nonpublic schools located in
22 different geographical regions of the state.

23 (ii) Nine members shall be activities directors employed
24 by school districts or accredited nonpublic schools located in
25 different geographical regions of the state.

26 (b) A quorum of the committee shall consist of ten members.
27 The members of the committee shall elect a chairperson of the
28 committee.

29 (c) Each organization shall appoint nine members to the
30 committee pursuant to a process established by the state board
31 of education by rule.

32 b. Prohibits the organization from changing membership
33 of extracurricular interscholastic athletics conferences,
34 including moving a member school to a different conference,
35 unless the conference realignment committee ordered the

1 organization to make such change pursuant to paragraph "a",
2 subparagraph (1), subparagraph division (c) or (d).
3 c. Requires the organization to develop an expedited review
4 and implementation process for orders received pursuant to
5 paragraph "a", subparagraph (1), subparagraph division (d).
6 d. Requires that, in order for a school district
7 or accredited nonpublic school to be included in any
8 extracurricular interscholastic athletics conference, the
9 school must offer at least one extracurricular interscholastic
10 athletics activity for boys and at least one extracurricular
11 interscholastic athletics activity for girls in the fall,
12 winter, and spring. Schools that are not coeducational must
13 offer at least one extracurricular interscholastic athletics
14 activity for boys or girls, as applicable, in the fall, winter,
15 and spring.
16 e. Prohibits a member school district or accredited
17 nonpublic school that withdraws from an extracurricular
18 interscholastic athletics conference, without approval, from
19 doing any of the following:
20 (1) Competing in the same extracurricular interscholastic
21 athletics activity in any conference for the two years
22 immediately subsequent to the date the member school district
23 or accredited nonpublic school withdrew.
24 (2) Competing in a tournament sponsored by an organization
25 in the same extracurricular interscholastic athletics activity
26 for the two years immediately subsequent to the date the member
27 school district or accredited nonpublic school withdrew.
28 3. The state board of education shall adopt rules pursuant
29 to chapter 17A to administer this section.>

SANDY SALMON